

any act in violation of the rights, privileges, or immunities of any person, to which he is entitled under the Constitution and laws of the United States, which, committed within a place under the sole and exclusive jurisdiction of the United States, would, under any law of the United States then in force, constitute the crime of either murder, manslaughter, mayhem, robbery, assault and battery, perjury, subornation of perjury, criminal obstruction of legal process [*sic*] or resistance of officers in discharge of official duty, arson, or larceny”⁴⁵

In vain the proponents of this section argued its propriety, seeking to support it by argument *ex necessitate* from the complete failure of state judicial and executive organs to control the depredations of the Klan.⁴⁶ Even

reaching, insisted that they could support the measure only because they understood that it did not presume to enter upon that realm of protection of rights traditionally reserved to the States. *Id.*, at 800. See notes 47-50, *infra*. And see the statement of Senator Edmunds, *id.*, at 697-698: “[The bill] does not undertake to interpose itself out of the regular order of the administration of law. It does not attempt to deprive any State of the honor which is due to the punishment of crime.”

⁴⁵ *Id.*, at 317. Any act to effect the object of the conspiracy rendered all the conspirators guilty of a felony.

⁴⁶ The impetus for the enactment of the Ku Klux Act was President Grant’s message to Congress asserting that a condition then existed in some States which rendered life and property insecure and which was beyond the power of state authorities to control. See *id.*, at App. 226. Throughout the debates on the bill the note was repeated: there was a need for federal action to supplant state administration which was failing to provide effective protection for private rights. *Id.*, at 345, 368, 374, 428, 444, 457-459, 460, 476, 505-506, 653, App. 78, 167, 185, 248-249, 252. Constitutional authority for such federal action was sought in the logic that “States” were ordered by the Fourteenth Amendment not to “deny” equal protection of the laws; that a “State” in effect denied such protection not only when its legislation was on its face unequal, but whenever its judicial or execu-